

		The case management conference is also continued to July 20, 2026 at 2:00 p.m. Clerk shall give notice of this ruling.
60.	Rhee v. Lee 2023-01327410	Defendant Carole Lee's motion for summary judgment is DENIED. Defendant Lee has not met her initial burden to show that this action has no merit; that plaintiff cannot prove an element or some elements of a cause of action; or that a complete defense is established as a matter of law entitling defendant to judgment. <i>C.C.P.</i> § 437c (p) (2), and <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287. Lee offered no evidence in support of the motion. Code of Civil Procedure § 437c(b)(1) explicitly requires that summary judgment motions "shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." Further, Lee has not submitted a Separate Statement in support of her motion, in contravention of Code of Civil Procedure section 437c(b)(1) which explicitly requires "[t]he supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed." Each material fact stated must be followed by a reference to the supporting evidence. <i>C.C.P.</i> § 437c. Lee does submit some documents in support with her reply to this motion, but those documents were not considered by the court. As explained in <i>San Diego Watercrafts, Inc. v. Wells Fargo Bank</i>, (2002) 102 Cal.App.4th 308, a moving party may not rely on new evidence filed with its reply papers. See also <i>Moore v. William Jessup University</i>, (2015) 243 Cal.App.4th 427, wherein the court reiterated that generally a party moving for summary judgment may not rely on new evidence filed with its reply papers. Finally, the documents proffered in reply are not accompanied by a verified translation. California Rules of Court, Rule 3.1110 specifically provides that "[e]xhibits written in a foreign language must be accompanied by an English translation, certified under oath by a qualified interpreter." There is no certification under oath by the interpreter of the subject documents. As a result, these documents are of no evidentiary value. Defendant Lee shall give notice of this ruling.

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